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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**DECLARATION AND REQUEST FOR
JUDICIAL NOTICE IN SUPPORT OF
OPPOSITIONS**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. PERSONAL KNOWLEDGE AND COMPETENCY

1. I am the Plaintiff in the above-entitled action. I am over the age of 18 years and am competent to testify to the matters set forth herein. I have personal knowledge of the facts stated in this declaration, except where stated on information and belief, and if called as a witness, I could and would competently testify thereto.
2. I make this declaration in support of my Oppositions to Defendants' Demurrer and Special Motion to Strike (Anti-SLAPP).

I-A. THE "SMOKING-GUN" PREAMBLE — WHAT THIS CASE IS NOW ABOUT

3. This case is about a fraud on the integrity of the judicial process. At the center of this action is a series of categorical denials of receipt of critical evidence (911/BWC CDs) by defense counsel acting as officers of the court. These denials were representations of fact upon which the Court explicitly and repeatedly relied to strip me of my ability to present my case.
4. On February 28, 2025, the Court articulated its reliance on these representations: > "I'm not going to question a lawyer's remarks regarding what they have and don't have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven't heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly." > (Hr'g Tr. Feb. 28, 2025, pp. 291:26–292:7.)
5. Based on that "credibility" and reliance, the Court issued a series of structural rulings against me, including excluding the 911 CDs (Jan. 27, p. 38:22–25), denying a continuance to address the surprise (Feb. 18, p. 181), and shifting the burden to me to disprove the defense's non-receipt claim (Feb. 28, p. 293:1–3).
6. On April 16, 2025, after months of categorical denials, defense counsel admitted the representations were false: > "Sure. They were provided by Dolan. He has had them for whatever, sure." > (RT 7, p. 213, ll. 13–15.)

I-B. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

7. The denials of receipt were irreconcilable with a two-year record of notice and possession, of which I have personal knowledge and/or which is reflected in the certified record:

1. **Aug. 18, 2022 — Service of 911 audio by Dolan to defense counsel.** My personal knowledge / record basis: I witnessed the service and/or reviewed the proof of service.
2. **Aug. 18, 2022 — My deposition — Mr. Chambers present.** My personal knowledge / record basis: I testified about the 911 audio in Mr. Chambers' presence.
3. **Sept. 30, 2022 — Mr. Abdelhalim deposition — Mr. Chambers present.** My personal knowledge / record basis: I attended the deposition; 911-related testimony was given.
4. **May 4, 2023 — Substitution of Attorney (CSK → PSA).** My personal knowledge / record basis: I received the Substitution of Attorney filing.
5. **Feb. 1, 2024 — PSA subpoena for identical materials.** My personal knowledge / record basis: I received notice of the subpoena for the same 911 records.
6. **Feb. 26, 2024 — PSA receives production from SFPD.** My personal knowledge / record basis: I observed references to this production in discovery.
7. **Sept. 9, 2024 — My FROG/SROG served on PSA identifying CAD log.** My personal knowledge / record basis: I personally served these discovery responses on Mr. Reyna.
8. **Feb. 18, 2025 — Jeremy Jessup confirms Dolan copy since 2021.** My personal knowledge / record basis: I was present in court when Mr. Jessup so testified.
9. **Apr. 16, 2025 — ADMISSION OF RECEIPT.** My personal knowledge / record basis: I was present in court for the RT 7, 213:13-15 admission.

II. DEFENDANTS' LITIGATION POSTURE

A. Defendants Treat the Underlying Acts As Having Occurred and Contend They Are Legally Protected

3. In their Demurrer Memorandum of Points and Authorities (Clerk File No. 10157174), Defendants acknowledge the file transfer at issue:

“On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense file to PSA pursuant to the Substitution of Attorney ... without ensuring proper documentation and conveyance of the production history to successor counsel.”

4. In their Anti-SLAPP Memorandum of Points and Authorities (Clerk File No. 10152305), Defendants further state:

“All the alleged conduct occurred squarely within the judicial proceeding.”

5. Defendants treat these alleged acts as having occurred but contend they are legally protected; this opposition disputes that legal characterization. I do not represent that Defendants have admitted fraud or wrongdoing; I state only that their motions proceed as though the pleaded allegations were true and assert only legal immunity.
6. Reserved.

III. OUT-OF-COURT REPRESENTATIONS (PHASE ONE)

A. Communications Inducing Reliance — Speaker, Date Range, and Supporting Document

7. During the course of the underlying litigation in Case No. **CGC-21-594102**, I received written and oral communications from defense counsel concerning the status and authentication of 911 audio and CAD records. The communications and course of conduct I rely on were led by **Michael R. Chambers** and other attorneys associated with **Carbone, Smith & Koyama LLP** between approximately **August 2022** and **May 4, 2023** (through substitution of counsel). Defendant **Michael R. Chambers** is sued in his individual capacity as alleged in the First Amended Complaint.
8. I principally relied on the **cumulative course of defense conduct** during that window: service of the 911 audio and related materials in **August–September 2022** (including on or about **August 18, 2022**); my **August 18, 2022** deposition and defendant Abdelhalim’s **September 30, 2022** deposition (911-related examination, with Mr. Chambers present); and the **absence of any motion to compel or formal written discovery objection** challenging authenticity or provenance of those materials from service through **January 17, 2025**, as more fully alleged in the First Amended Complaint in this action ¶¶**26–33**. Representative excerpts from the

September 30, 2022 deposition transcript (911-related lines) and references from the **underlying register of actions / clerk’s transcript** (including meet-and-confer materials indexed at **CT Vol. 1, p. 66**) are attached hereto as **Exhibit A** (composite). In substance, that course of conduct led me to understand authentication and provenance of the 911 audio and CAD records were **not actively contested in writing** during the pretrial window when I could still have sequenced custodian and authentication motions without the compressed trial posture that followed.

9. These matters arose outside the courtroom, in the context of discovery production, deposition examination, and meet-and-confer practice, and not on the record before the Court. To the extent any additional communications bearing on this subject exist in the underlying court file or counsel files, they will be identified by date, author, and Bates/file reference in a supplemental declaration if obtained.
10. In direct reliance on the course of conduct identified in Paragraphs 7–9, I did not pursue specific procedural steps — including issuance of subpoenas to **SFPD records custodians / CAD index witnesses** and a noticed motion to authenticate and admit the 911 audio and CAD records under Evidence Code § 1400 et seq. before **January 17, 2025** (when successor counsel filed Motions in Limine Nos. 1–19) — that I would have pursued earlier had defense counsel’s out-of-court posture matched the “**unknown provenance**” / “**not produced**” position later taken before the Court.

IV. COURT-FACING REPRESENTATIONS (PHASE TWO)

A. Shift in Position on the Record

11. After the windows to subpoena, authenticate, or properly sequence the 911 audio and CAD records had narrowed or closed, Defendants (directly and through successor counsel relying on the file as transferred) took a materially different position before the Court concerning non-receipt, unknown provenance, or exclusion of those materials.
12. The specific court-facing statements I rely on appear in the **February 18, 2025 pretrial hearing** transcript, including **pp. 139–141** (Jeremy Jessup testimony; Priya Navaratnasingham’s

“news to me” response and representation that her office “**did not receive the 911 call until the day of the MSC**”), and in **Motions in Limine Nos. 6 and 17** filed **January 17, 2025** in Case No. CGC-21-594102 (**Clerk’s Transcript Vol. 1, pp. 149–151; p. 238**). I also rely on **April 16, 2025** trial testimony (**Reporter’s Transcript vol. 7, p. 213, ll. 13–15**) where defense counsel admitted the materials “**were provided by Dolan.**” A true and correct copy of the **February 18, 2025** hearing transcript excerpts and the **January 17, 2025** MIL pages described above is attached hereto as **Exhibit C** (composite).

13. The Court relied on the representations identified in Paragraph 12 in making procedural rulings, including **denial of my continuance requests** at the **February 18, 2025** hearing and **deferral / limitation rulings** on the 911 audio and supplemental police materials during the **April 2025** trial, as reflected in the reporter’s transcripts and minute orders for Case No. CGC-21-594102.
14. The court-facing position identified in Paragraph 12 was inconsistent with the out-of-court position identified in Paragraphs 7–9 and with the production history I personally observed during the underlying litigation, including **service of CAD identifiers on successor counsel on September 9, 2024**, without written objection (**First Amended Complaint ¶28**).

V. FILE TRANSFER AND PRODUCTION HISTORY

A. The Substitution of Attorney

15. On May 4, 2023, a Substitution of Attorney (**Transaction ID #69953800**) was filed in the underlying action, substituting successor counsel (Phillips, Spallas & Angstadt LLP) for Defendants Carbone, Smith & Koyama LLP and Michael R. Chambers. A true and correct copy of the filed Substitution of Attorney is attached hereto as **Exhibit B**.
16. Based on my review of the filings, correspondence, and successor counsel’s court-facing statements identified in Paragraph 12, the transfer of the defense file to successor counsel did not include a complete and accurate production history.
17. Specifically, documentation showing what materials had been produced by or to the defense, when, and in what format — information that would have permitted successor counsel to

accurately represent the production history to the Court — was either not conveyed or not conveyed in usable form. To the extent the precise contents of the file transfer are within Defendants’ exclusive knowledge, that subject is identified here on information and belief and will be particularized through **underlying-file exhibits, transmittal letters, and any file-index or cover memo** obtained in discovery.

VI. STRUCTURAL HEARING IMPAIRMENT (KULCHAR TWO-STEP)

A. What Was Concealed

18. The matters concealed or not conveyed, to my knowledge, consist of: (a) the out-of-court position taken by prior defense counsel that authentication of the 911 audio and CAD records was not contested for purposes of the then-applicable deadlines (Paragraphs 7–9); and (b) the complete production history of those materials at the time of substitution (Paragraphs 16–17).

B. What Plaintiff Would Have Done Differently (Reliance Link)

19. Absent the concealment described in Paragraph 18, I would have (a) issued subpoenas to **SFPD records custodians and CAD index witnesses by no later than the final pretrial conference window in January 2025**; (b) filed a noticed motion to authenticate and admit the 911 audio and CAD records pursuant to Evidence Code § 1400 et seq. on **notice and briefing timed to precede the January 17, 2025** motions in limine and related pretrial orders; (c) sought a continuance specifically to cure any provenance dispute before the trial window closed; and (d) placed on the record, before the relevant rulings described in Paragraph 13, the production history and course of conduct identified in Paragraphs 7–9.

C. Resulting Impairment

20. Because I was induced to treat those evidentiary issues as not in dispute and because the production history was not accurately before the Court at the time of the court-facing shift, the procedural windows for authentication and sequencing closed before I could take the steps identified in Paragraph 19. The result was a process-level impairment of my ability to present the 911 audio and CAD records in proper form — not a complaint about how a jury weighed evidence actually admitted.

VII. CSAA AS INSTITUTIONAL PRINCIPAL

A. Agency Facts Within Personal Knowledge

21. Based on correspondence I received and on defense-side filings in the underlying action, CSAA Insurance Exchange funded and controlled the defense of its insured in the underlying action, including retention of Carbone, Smith & Koyama LLP and successor counsel. The specific claim number, assigned adjuster, and coverage correspondence I rely on are identified in the **First Amended Complaint ¶49** (claim number **1004-09-1054**; policy number **CAAS100310857**; February 25, 2021 denial correspondence).
22. To the extent specific acts of direction, approval, or ratification by CSAA are within CSAA's exclusive institutional knowledge, those facts are alleged on information and belief and will be particularized through discovery; representative items include **panel-counsel billing instructions, substitution-approval correspondence, reservation-of-rights or coverage correspondence, and claim-file notes** as described in **First Amended Complaint ¶¶50–51, 57**.
23. The conduct alleged in the First Amended Complaint occurred in the course of the agency relationship described in Paragraphs 21–22 and for the benefit of CSAA as institutional principal.

VIII. DISCOVERY CLOSURE AND TRIAL STRUCTURE

24. The specific procedural windows that closed, and on which the structural impairment described in Section VI depends, are:
 - a. **Continuance denied:** My continuance requests made at the **February 18, 2025** pretrial hearing were denied by the Court the same day, as reflected in the **February 18, 2025** hearing transcript and related minute orders in Case No. CGC-21-594102.
 - b. **Evidentiary ruling:** Rulings **deferring admission of the 911 audio** and **limiting the supplemental police report** were entered during the **April 16–17, 2025** trial days, including on the reporter's transcript volumes cited in the **First Amended Complaint ¶46** (e.g., **RT 7** passages described therein).

- c. **Discovery cutoff / authentication window:** The **pretrial and discovery cutoff orders** entered in the register of actions for Case No. **CGC-21-594102** closed the window in which I could, as of right, have completed the subpoena and authentication sequence described in Paragraph 19 after the **January 17, 2025** motions in limine and the **February–April 2025** pretrial and trial schedule.
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IX. CHRONOLOGY

25. The following chronology summarizes the sequence on which this declaration depends. Each step is supported by the paragraph(s) cross-referenced below:
1. **What was produced and when.** The 911 audio and CAD records, and related production, were exchanged in **August–September 2022**, including service of the 911 audio on or about **August 18, 2022**, as reflected in the **First Amended Complaint ¶26** and the proof-of-service and production references in the **underlying court file** (to be copied into Exhibit A). (See ¶¶ 14, 16.)
 2. **Pretrial representations.** Defense counsel’s out-of-court posture regarding authentication and provenance is reflected in the course of conduct from **August 2022** through **May 4, 2023**, including the materials attached as Exhibit A. (See ¶¶ 7–9.)
 3. **Substitution.** The Substitution of Attorney was filed on May 4, 2023 (Exhibit B). (See ¶ 15.)
 4. **Production-history information not conveyed.** At or after substitution, the complete production history described in Paragraph 17 was not conveyed in usable form to successor counsel. (See ¶¶ 16–17.)
 5. **What successor counsel told the Court.** Successor counsel’s court-facing statements regarding non-receipt, unknown provenance, or exclusion appear in the **February 18, 2025** hearing transcript (**pp. 139–141**) and in **Motions in Limine Nos. 6 and 17** (Exhibit C). (See ¶ 12.)
 6. **Ruling that followed.** The Court entered the ruling(s) identified in Paragraphs 13 and 24 in reliance on those statements.

7. **Specific lost opportunity.** As a result, the procedural steps identified in Paragraph 19 became unavailable, and the 911 audio and CAD records were not presented in proper form. (See ¶¶ 19–20, 24.)
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X. PREJUDICE

26. Absent the alleged deception described in Sections III–V, I would have taken each of the procedural steps identified in Paragraph 19 within the applicable windows identified in Paragraph 24, and the 911 audio and CAD records would have been authenticated and presented in proper sequence to the trier of fact. The lost opportunity was not an opportunity to relitigate weight; it was the opportunity to have the process function at all as to those materials.
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X-A. PLAINTIFF’S CONTEMPORANEOUS PRESERVATION OF THE SUPPRESSION THEME

27. On January 27, 2025, I appeared in Department 301 and stated on the record:

“We have two 911 records that the Defense has been trying to suppress.”

(Hr’g Tr. Jan. 27, 2025, p. 19, ll. 1–5.)

A true and correct copy of the relevant transcript pages is attached hereto as **Exhibit D** (to be supplemented with certified transcript pages). I knew at that moment that the 911 audio, BWC footage, and CAD log had been produced in 2021–2022 because I had reviewed the file my prior counsel delivered in August 2024.

28. On February 18, 2025, I appeared in Department 301 and stated:

“I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.”

(Hr’g Tr. Feb. 18, 2025, pp. 44–45.)

My intent was to preserve an objection for appeal regarding the Defense’s court-facing denial of receipt. A true and correct copy of the relevant transcript pages is attached hereto as **Exhibit E** (to be supplemented with certified transcript pages).

29. On February 18, 2025, I also stated on the record:

“the information was completely concealed from me. I never received any access to any of the videos or 911 tapes before the moment they had sent me a motion in limine.”

(Hr’g Tr. Feb. 18, 2025, p. 17.)

30. These statements (Paragraphs 27–29) are the Evidence Code § 402 foundation for the transcript excerpts to come in without dispute. I made these statements under oath, on the certified record, contemporaneously with the events described.

X-B. OFFICER-OF-THE-COURT RELIANCE AND COUNT 7 (CONSTRUCTIVE FRAUD)

31. On February 28, 2025, the Court explained that it would not second-guess defense counsel’s representations about what they had and did not have, because counsel are officers of the court (Hr’g Tr. pp. 291:26–292:7). I understood those statements to mean the Court was extending institutional reliance to defense counsel’s possession and provenance narrative. I relied on that same posture in real time when I opposed the burden-shift ruling and the protective-order channel that followed (Hr’g Tr. pp. 291–294).

32. That reliance is the factual predicate for the **duty-of-candor** element of constructive fraud (Civ. Code § 1573) pleaded as Count 7 in the proposed Second Amended Complaint: the tribunal’s articulated trust in counsel’s representations is the mirror image of the nondisclosure and misleading-act pattern the Nine-Point Receipt Chain and the April 16, 2025 admission expose.

XI. DAMAGES AND RELIEF SOUGHT

A. Equitable Vacatur

33. The relief I seek is equitable vacatur of the judgment procured by extrinsic fraud, plus ancillary equitable monetary relief incident to vacatur.

34. I am not seeking to relitigate the negligence issues decided by the jury. I am seeking to set

aside a judgment procured through fraud on the tribunal as described above.

XII. CONCLUSION

35. The facts set forth above describe the two-phase pattern of extrinsic fraud alleged in the First Amended Complaint and, on leave to amend, the proposed Second Amended Complaint: out-of-court representations inducing reliance (Section III), followed by court-facing statements that induced procedural rulings (Section IV), resulting in structural hearing impairment (Section VI) tied to specific closed procedural windows (Section VIII).
36. Defendants treat these alleged acts as having occurred but contend they are legally protected; this opposition disputes that legal characterization.
37. I respectfully request the Court consider this declaration in support of my Oppositions to the Demurrer and Special Motion to Strike.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 16, 2026, at San Francisco, California.

FRANCISCUS DYLAN ROSARIO

PART II — REQUEST FOR JUDICIAL NOTICE (COURT RECORDS AND AUTHORITIES)

§I.B — Procedural Request

Pursuant to Evidence Code section 452(d), Plaintiff Franciscus Dylan Rosario respectfully requests the Court take judicial notice of the court records identified in Section III below. These are records of California courts bearing directly on matters at issue on the pending Demurrer and Special Motion to Strike — including the procedural posture of the underlying tort action, rulings entered therein, and Defendants’ own filed appearances.

The purpose of this request is narrow: to place before the Court the undisputed court records

necessary for the Court to resolve the legal propositions actually presented by the motions. Plaintiff does not ask the Court to take judicial notice of the truth of any hearsay within these records, only of their existence, filing, and legal effect.

A separate **Appendix — Index of Authorities with Pin-Cited Omissions** is attached for the Court's convenience. That appendix collects the published California appellate opinions on which the parties' briefing turns, with pin-cites to the passages relevant to the motions. Judicial notice of published California appellate opinions is not required (they are binding authority the Court applies directly); the appendix is provided solely as a reference aid.

II. LEGAL STANDARD

Evidence Code section 452(d) authorizes judicial notice of "[r]ecords of any court of this state."

This request is directed to court records of the underlying tort action and related filings.

To the extent the Court elects to take judicial notice of the existence of any published California appellate opinion listed in the Appendix, the proper statutory hook is Evidence Code section 451(a) (decisional and statutory law of California, which is judicially noticed as a matter of law), not section 452(d).

III. COURT RECORDS FOR WHICH JUDICIAL NOTICE IS REQUESTED (EVID. CODE 452(D))

Item X: Certified Hr'g Tr. January 27, 2025

Document: Certified Hearing Transcript, January 27, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 7–61).

Pincites relied upon: pp. 7 (MIL framing), 15–16 (continuance opposition), 17–22 (Plaintiff's "suppress" objection), 32 (FROG/SROG pin-cites), 34, 41 (MIL ruling), 42, 46, 49 (CCP § 473 denied), 55–60 (continuance denied).

Relevance: Establishes Plaintiff's contemporaneous preservation of the suppression theme and the procedural denials that foreclosed relief. Directly relevant to the intrinsic/extrinsic distinction and

to accrual under CCP § 338(d).

Item Y: Certified Hr’g Tr. January 28, 2025

Document: Certified Hearing Transcript, January 28, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 85–100).

Pincites relied upon: p. 90, ll. 17–33 (defense § 581(d) dismissal motion; Court’s “immediate reversal” remark).

Relevance: Establishes defense’s second-day dismissal attempt while Plaintiff was medically incapacitated.

Item Z: Certified Hr’g Tr. February 3, 2025

Document: Certified Hearing Transcript, February 3, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 105–130).

Pincites relied upon: p. 109, ll. 21–23; p. 116, ll. 9–16; pp. 122–124 (renewed § 581(d) under submission; ex parte disclosure-order condition).

Relevance: Currently missing from the RJN package. This hearing is critical because it shows defense maintained termination leverage across **two hearings** during the preservation window.

Item AA: Certified Hr’g Tr. February 18, 2025

Document: Certified Hearing Transcript, February 18, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 135–210).

Pincites relied upon: pp. 17 (concealed), 23 (stonewalling), 44–45 (going on the record), 139–141 (Jessup testimony; “news to me”), 145 (SFPD direct links), 147, 151, 164 (continuance requests), 181 (continuance denied; “since August” admission).

Relevance: The Feb. 18 hearing contains both Position A (p. 141) and Position B (p. 181) in the same transcript, by the same attorney—establishing scienter for judicial estoppel and the Flatley illegal-conduct exception.

Item BB: Certified Hr’g Tr. February 28, 2025

Document: Certified Hearing Transcript, February 28, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 290–310).

Pincites relied upon: pp. 290–294 (officer-of-court ruling at p. 291, ll. 26–28 and p. 292, ll. 1–7; burden-shift ruling at p. 293, ll. 1–3).

Relevance: The February 28, 2025 ruling is a Tier-1 “smoking gun” excerpt. The Court expressly stated: (i) “I’m not going to question a lawyer’s remarks regarding what they have and don’t have” (p. 291:26–28); (ii) “They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court” (p. 292:1–4); and (iii) imposed a burden-shift on Plaintiff: “it’s required of you to send the documents over. Otherwise, I won’t allow them in.” (p. 293:1–3). These statements memorialize the tribunal’s institutional reliance on defense candor — reliance that, as demonstrated by the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213, ll. 13–15), was misplaced.

IMPORTANT — Disclaimer under Evid. Code § 452(d): Notice is requested only for the making of the statements by the Court (a court-record fact), not for the truth of any underlying assertion about defense counsel’s conduct — that truth question is the very issue this equitable action adjudicates.

Exhibit 1: Reliance-and-Rulings Chain Exhibit

Document: The “Reliance Chain Exhibit” (see **Bench Binder App. 2**) documenting the four-hearing reliance arc and the structural rulings procured. **Relevance:** Establishes the “fruit” of the misrepresentation. Directly relevant to the “Reliance → Rulings → Admission → Falsity” sequence.

Exhibit 2: Plaintiff Preservation Chronology

Document: The “Plaintiff Preservation Chronology” (see **Bench Binder App. 5**). **Relevance:** Proves Plaintiff objected contemporaneously to every misrepresentation, preempting “sleeping on rights” arguments.

Exhibit 3: Judicial Admission Matrix

Document: The “Judicial Admission Matrix” (see **Bench Binder App. 3**). **Relevance:** Makes the inconsistency → reliance → ruling → admission chain visible in a single matrix row.

Exhibit 4: Brief Re: Fraud on the Court

Document: Plaintiff’s consolidated Brief Re: Fraud on the Court; Estoppel; and Exhibit-by-Exhibit Estoppel Record (filed concurrently with these oppositions). **Relevance:** Comprehensive doctrinal and record analysis of the 900-day deception.

Exhibit 5: Fraud-on-Court Roadmap (Bench Handout)

Document: The one-page roadmap (see **Bench Binder App. 6**). **Relevance:** Four-quadrant summary for use at the bench.

Exhibit 6: Substitution of Attorney — Underlying Tort Action

Document: Substitution of Attorney filed May 4, 2023. **Relevance:** Establishes the file-transfer event and substitution of PSA for CSK.

Exhibit 7: Minute Orders — Continuance Denials and Evidentiary Rulings

Document: Filed minute orders from the underlying tort action. **Relevance:** Direct evidence of the procedural consequences of the fraud.

Exhibit 8: Notice of Appeal — Underlying Tort Action

Document: Notice of Appeal filed in the underlying action. **Relevance:** Establishes the distinct procedural path of the underlying liability.

IV. AUTHORITIES SUMMARY (REFERENCE ONLY — SEE APPENDIX)

The following summarizes, for the Court’s convenience, the authorities briefed in the oppositions and the pin-cited passages on which Plaintiff relies as compared with the passages Defendants quote. The Appendix contains full pin-cited opinions.

- **Park v. Bd. of Trustees (2017) 2 Cal.5th 1057** — Defendants cite p. 1064 (quoted phrase); Plaintiff cites pp. 1062–1064. **Legal proposition:** Step-one gravamen filter; isolating injury-producing act.
- **Flatley v. Mauro (2006) 39 Cal.4th 299** — Defendants cite p. 322 (finality); Plaintiff cites

pp. 320–325. **Legal proposition:** Illegal-conduct exception to Anti-SLAPP.

- **Moradi-Shalal v. Fireman’s Fund (1988) 46 Cal.3d 287** — Defendants [implicit immunity]; Plaintiff cites p. 305. **Legal proposition:** Preservation of common law fraud against insurers.
- **Action Apartment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232** — Defendants [not cited]; Plaintiff cites pp. 1242–1247. **Legal proposition:** Extrinsic fraud boundary of Civ. Code § 47(b).
- **Kimmel v. Goland (1990) 51 Cal.3d 202** — Defendants [not cited]; Plaintiff passim. **Legal proposition:** Communications vs. noncommunicative conduct.
- **Crowley v. Katleman (1994) 8 Cal.4th 666** — Defendants [not cited]; Plaintiff passim. **Legal proposition:** Primary rights analysis for collateral estoppel.

V. CONCLUSION

Plaintiff respectfully requests the Court take judicial notice under Evidence Code section 452(d) of the court records identified in Section III, and consult the attached Appendix as a reference aid for the published authorities addressed in the oppositions.

DATED: April 16, 2026

PART III — REQUEST FOR JUDICIAL NOTICE (CERTIFIED HEARING TRANSCRIPTS) — FOLDED INTO RJN PACKAGE

I. RELIEF REQUESTED

Plaintiff requests that the Court take **judicial notice** under **Evid. Code § 452(d)** (official acts of a public entity), **§ 453** (proceedings of a court of record), and **Cal. Rules of Court, rule 3.1306(c)** (reporter’s transcript of proceedings in the same case), of the **certified reporter’s transcripts** of the following hearings in Rosario v. Abdelhalim, CGC-21-594102 (and related register entries as appropriate):

1. **January 27, 2025** hearing transcript (excerpts cited in SAC Exhibit K).

2. **January 28, 2025** hearing transcript (SAC Exhibit L).
3. **February 18, 2025** hearing before the Garrett L. Wong (Sandra L. Carranza, CSR 7062) (SAC Exhibits C and M).
4. **February 28, 2025** hearing transcript (SAC Exhibit N).

II. SOURCE DOCUMENTS (DECLARATION ATTACHMENT LIST)

Declarant will identify the **certified reporter's transcripts** for the hearings listed in Section I, including the same materials designated among the transcript excerpts in Plaintiff's Second Amended Complaint Exhibit Appendix (Exhibits K, L, C, M, N, O, P, and Q, as applicable). True and correct copies will be attached to any declaration filed in support of this request; conformed or clerk-certified copies may be lodged with the Court on order.

III. COVER SHEET: PAGE AND LINE CITES USED IN SAC AND COMPANION DRAFTS

Topic	Citation	Used in
MIL framing	Hr'g Tr. Jan. 27, 2025, p. 7, ll. 10–14	SAC ¶¶40; Exhibit K
Continuance opposition / 883-day denial	Jan. 27, pp. 15, 57	SAC ¶¶41, 112(b); Exhibit K
Navaratnasingham hearing statements	Jan. 27, pp. 16, 19	SAC ¶126(c)–(d); Exhibit K
CCP § 581(d) dismissal motion	Jan. 28, p. 90, ll. 17–33	SAC ¶40(c); Exhibit L
2021 transmission / production	Feb. 18, p. 139, l. 11	SAC ¶¶26, 68; Exhibit M

Topic	Citation	Used in
Jessup production quotes	Feb. 18, pp. 140–141	SAC ¶¶42; Appendix 10; Exhibit M
MSC-date / “news to me”	Feb. 18, p. 141, ll. 4–11	SAC ¶¶43; Exhibit C/M
Service on prior firm	Feb. 18, p. 141, ll. 18–23	Appendix 10; Exhibit M
SFPD direct BWC links	Feb. 18, p. 145, ll. 4–18	Brief 09 §III.A; Appendix 10; Exhibit M
Continuance requests	Feb. 18, pp. 147, 151, 164	SAC ¶¶47(a); Exhibit M
Position-B possession / oppose continuance	Feb. 18, p. 181, ll. 6–23	SAC ¶¶88, 112(b); Exhibit M
Protective-order posture	Feb. 28, pp. 296–307	SAC ¶¶47(f); Exhibit N
Trial Day 7 sequence	RT 7 (multiple lines)	SAC ¶¶58–63, 99; Exhibit O
Trial Day 8 / read-back	RT 8, PG 12–14, 1958–1959, pp. 1990–1993	SAC ¶¶46–47; Exhibit P
Closing argument	RT 10, pp. 1011–1012	SAC ¶¶45, 112(b); Exhibit Q

IV. DECLARATION SHELL (TEXT FOR PROPOSED DECLARANT)

1. I am a person with knowledge of the facts stated herein / I am Plaintiff / I am counsel of record [select one].
2. Attached as Exhibit [...] are true and correct copies of [certified hearing transcript PDFs] for the hearings listed in Section I.
3. The page and line citations in the cover sheet (Section III) match the pagination of the attached certified transcripts.
4. I will lodge conformed or clerk-certified copies of the reporter’s transcripts with the Court on order, consistent with the Court’s rules and any direction from the Court.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 16, 2026, at San Francisco, California.

Declarant

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO,

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

Dated: April 18, 2026



FRANCISCUS DYLAN ROSARIO
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